

BEFORE THE STATE GRIEVANCE BOARD

STATE OF COLORADO

Case No. RG GB DLINY

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS AGAINST THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF ANNIE LOUISE WASHBURN, M.S., LPC, LICENSE NO. 937,

IT IS HEREBY STIPULATED and agreed by and between the Colorado State Grievance Board ("Board") and Annie Louise Washburn, M.S., LPC ("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.

2. The State Board of Licensed Professional Counselor Examiners granted respondent a license to practice professional counseling in Colorado on April 16, 1994. Respondent was issued license number 937. Respondent has been licensed to practice professional counseling since that date and is so licensed at this time.

3. On or about June 29, 1995 the Board received a complaint alleging that respondent failed to report sexual abuse of a minor child and made a verbal commitment to the child not to reveal the abuse.

4. Following an investigation of the complaint and pursuant to its authority under C.R.S. §12-43-705(1), the Board determined that reasonable grounds existed to initiate disciplinary action against respondent's Colorado license to practice professional counseling and practice of psychotherapy.

5. The Board, therefore, authorized its legal counsel, the Colorado Attorney General, to initiate a disciplinary proceeding against respondent's license to practice professional counseling and practice of psychotherapy.

6. Respondent understands she has the right to a formal disciplinary hearing, pursuant to C.R.S. §12-43-705, with respect to the facts admitted in paragraph 8, below. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to a hearing; relieves the Board of its burden of proving the facts and conduct

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OF ANNIE LOUISE WASHBURN, M.S., LPC, LICENSE NO. 937,

IT IS HEREBY STIPULATED and agreed by and between the Colorado State Grievance Board ("Board") and Annie Louise Washburn, M.S., LPC ("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.
2. The State Board of Licensed Professional Counselor Examiners granted respondent a license to practice professional counseling in Colorado on April 16, 1994. Respondent was issued license number 937. Respondent has been licensed to practice professional counseling since that date and is so licensed at this time.
3. On or about June 29, 1995 the Board received a complaint alleging that respondent failed to report sexual abuse of a minor child and made a verbal commitment to the child not to reveal the abuse.
4. Following an investigation of the complaint and pursuant to its authority under C.R.S. §12-43-705(1), the Board determined that reasonable grounds existed to initiate disciplinary action against respondent's Colorado license to practice professional counseling and practice of psychotherapy.
5. The Board, therefore, authorized its legal counsel, the Colorado Attorney General, to initiate a disciplinary proceeding against respondent's license to practice professional counseling and practice of psychotherapy.
6. Respondent understands she has the right to a formal disciplinary hearing, pursuant to C.R.S. §12-43-705, with respect to the facts admitted in paragraph 8, below. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to a hearing; relieves the Board of its burden of proving the facts and conduct

complained of; gives up her right to present a defense by oral and documentary evidence; and gives up her right to cross-examine witnesses. Respondent understands that, pursuant to C.R.S. §12-43-705(5), she has the right to appeal to the Colorado Court of Appeals the Board's final order containing disciplinary action. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives his right to appeal or otherwise to contest the validity of the final Board order entered pursuant to this stipulation.

7. The Board by this stipulation and order, hereby orders that respondent's practice of psychotherapy shall be on probation for a period of at least two years commencing on the date this stipulation and order is fully executed or upon designation of respondent's supervisor or approval of her practice monitor, whichever is later. During the period of probation respondent can practice psychotherapy only if she complies with all conditions of the probation, including having a supervisor and/or practice monitor in place.

8. The conditions of respondent's probation are:

a. Respondent will strictly observe the prohibitions set forth in C.R.S. §12-43-704(1) and assure that she does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

b. Should respondent practice professional counseling and psychotherapy in a position where she is employed by and directly supervised by a hospital, mental health agency, health care provider or any employer, her employer shall, at a minimum, provide the following supervision:

(i) The supervision shall involve individual face-to-face, regular contact between respondent and her supervisor that occurs at such frequency and for such length of time as the supervisor deems necessary, but at least once a week for at least one hour. Respondent and her supervisor must review and discuss each of respondent's active cases at least once a month. Such review shall be conducted on a regular basis, as the supervisor determines appropriate and necessary for the supervisor to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for her clients.

(ii) The supervisor shall observe respondent in her work with clients to the extent the supervisor deems appropriate and necessary to determine whether respondent is practicing professional counseling and psychotherapy with skill and safety for her clients, in accordance with generally accepted standards of practice.

complained of; gives up her right to present a defense by oral and documentary evidence; and gives up her right to cross-examine witnesses. Respondent understands that, pursuant to C.R.S. §12-43-705(5), she has the right to appeal to the Colorado Court of Appeals the Board's final order containing disciplinary action. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives his right to appeal or otherwise to contest the validity of the final Board order entered pursuant to this stipulation.

7. The Board by this stipulation and order, hereby orders that respondent's practice of psychotherapy shall be on probation for a period of at least two years commencing on the date this stipulation and order is fully executed or upon designation of respondent's supervisor or approval of her practice monitor, whichever is later. During the period of probation respondent can practice psychotherapy only if she complies with all conditions of the probation, including having a supervisor and/or practice monitor in place.

8. The conditions of respondent's probation are:

a. Respondent will strictly observe the prohibitions set forth in C.R.S. §12-43-704(1) and assure that she does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

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(i) The supervision shall involve individual face-to-face, regular contact between respondent and her supervisor that occurs at such frequency and for such length of time as the supervisor deems necessary, but at least once a week for at least one hour. Respondent and her supervisor must review and discuss each of respondent's active cases at least once a month. Such review shall be conducted on a regular basis, as the supervisor determines appropriate and necessary for the supervisor to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for her clients.

(ii) The supervisor shall observe respondent in her work with clients to the extent the supervisor deems appropriate and necessary to determine whether respondent is practicing professional counseling and psychotherapy with skill and safety for her clients, in accordance with generally accepted standards of practice.

(iii) The supervisor shall review respondent's case load to assure that respondent is only treating clients that she is qualified to treat in accordance with her level of training, experience or competence, to assure that she is treating clients with skill and safety for her clients in accordance with generally accepted standards of practice.

(iv) The supervisor shall maintain such personnel records as are deemed appropriate by the supervisor or kept in the normal course of employee evaluation. Such personnel records shall be sufficient to reflect whether respondent is appropriately treating clients in accordance with her training, experience and competence, and with skill and safety for her clients in accordance with generally-accepted standards of practice.

(v) The supervisor shall report to the Board, in writing, as to whether the respondent is practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for her clients. The first report shall be submitted by the fifth day of the month following the first full month of this probation. The supervisor shall submit subsequent reports on the fifth day of each month thereafter (i.e., on a monthly basis) for the first twelve reports. After the submission of the first twelve reports, unless otherwise ordered by the Board, the supervisor shall submit her/his reports by the fifth day of every third month (i.e., on a quarterly basis) until the probation is completed.

(vi) If the supervisor is of the opinion that respondent is not practicing professional counseling and psychotherapy with skill and safety for her clients, in accordance with generally accepted standards of practice, s/he shall take appropriate employment action and shall report the opinion and the basis for that opinion as well as any action affecting respondent's employment to the Board. Any such report shall be made in writing within 48 hours of the supervisor forming her/his opinion. The supervisor shall send a copy of the report to the respondent when s/he sends the report to the Board. Should the Board receive such a report, respondent agrees to discontinue the practice of professional counseling and psychotherapy until the Board reviews the report and the basis for the opinion to determine if respondent can practice professional counseling and psychotherapy with skill and safety for her clients, in accordance with generally accepted standards of practice.

c. Should respondent engage in the independent practice of professional counseling and psychotherapy, respondent's independent practice of professional counseling and psychotherapy must be monitored by a Board-approved therapist ("practice monitor"), who both supervises respondent's practice of professional counseling and psychotherapy and reports in writing to the Board in accordance with this stipulation and order.

(iii) The supervisor shall review respondent's case load to assure that respondent is only treating clients that she is qualified to treat in accordance with her level of training, experience or competence, to assure that she is treating clients with skill and safety for her clients in accordance with generally accepted standards of practice.

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(vi) If the supervisor is of the opinion that respondent is not practicing professional counseling and psychotherapy with skill and safety for her clients, in accordance with generally accepted standards of practice, s/he shall take appropriate employment action and shall report the opinion and the basis for that opinion as well as any action affecting respondent's employment to the Board. Any such report shall be made in writing within 48 hours of the supervisor forming her/his opinion. The supervisor shall send a copy of the report to the respondent when s/he sends the report to the Board. Should the Board receive such a report, respondent agrees to discontinue the practice of professional counseling and psychotherapy until the Board reviews the report and the basis for the opinion to determine if respondent can practice professional counseling and psychotherapy with skill and safety for her clients, in accordance with generally accepted standards of practice.

c. Should respondent engage in the independent practice of professional counseling and psychotherapy, respondent's independent practice of professional counseling and psychotherapy must be monitored by a Board-approved therapist ("practice monitor"), who both supervises respondent's practice of professional counseling and psychotherapy and reports in writing to the Board in accordance with this stipulation and order.

(i) Respondent's practice monitor shall monitor all of her cases in her independent practice of professional counseling and psychotherapy. The practice monitoring must consist of individual face-to-face contact that occurs for at least one hour or such longer time as the practice monitor deems necessary for each twenty hours of client contact, but at least once a month. During the practice monitor meetings, respondent and her practice monitor must review and discuss each of respondent's active cases at least once every month to allow the practice monitor to allow the practice monitor to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety to her clients.

(ii) Respondent must provide written notification to every client who she provides professional counseling and psychotherapy services to as part of her independent practice of professional counseling and psychotherapy, stating that her practice of professional counseling and psychotherapy is being monitored. The written notice shall include the name, address, and telephone number of her practice monitor. Such notice may be provided in a mandatory disclosure form. Respondent's failure to provide this written notice to each such professional counseling and psychotherapy client may be construed as a violation of this order. The practice monitor shall indicate in the her/his reports that such written notification has been made.

(iii) The practice monitor is authorized to examine and shall examine such client records and case files maintained by respondent as the practice monitor or the Board deems appropriate and necessary to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally-accepted professional standards of practice and with reasonable skill and safety to her clients.

(iv) The practice monitor must report the results of her/his monitoring to the Board in writing and send a copy of each report to the respondent. The practice monitor must submit her/his first report within five days of the end of the first full month after the Board's written approval as respondent's practice monitor. The practice monitor shall submit subsequent reports within five days of the last day of each month thereafter (i.e., on a monthly basis) for the first twelve reports. After the submission of the first twelve reports, unless otherwise ordered by the Board, the practice monitor shall submit her/his reports by the fifth day of every third month (i.e., on a quarterly basis) until the practice monitoring is completed.

(v) If the practice monitor is of the opinion that respondent is not practicing professional counseling and psychotherapy in accordance with generally-accepted professional standards of practice or with reasonable skill and safety to her

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clients, the practice monitor shall report her/his opinion and the basis or bases for that opinion to the Board. The practice monitor shall make that report in writing and within 48 hours of forming her/his opinion. The practice monitor shall send a copy of such a report to the respondent when s/he sends the report to the Board.

(vi) After Board approval of the practice monitor, respondent and her practice monitor shall enter into a written contract for practice monitoring. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this stipulation and order and the Board's file; has read these materials; and understands the duties and responsibilities s/he is undertaking as respondent's practice monitor.

(vii) Respondent must have a practice monitor approved by the Board before engaging in the independent practice of professional counseling and psychotherapy. Respondent agrees to a summary suspension of her professional counseling license and a cease and desist order for her practice of psychotherapy if an approved practice monitor is not in place prior to her engaging in the independent practice of professional counseling and psychotherapy.

(viii) Respondent or her practice monitor may terminate the monitoring relationship on written notice to the other and the Board not less than 30 days before the date of termination. The notice shall state the reason for the termination. In the event of such termination, respondent cannot engage in the independent practice of professional counseling and psychotherapy without first obtaining another Board-approved practice monitor, who shall conduct her/his monitoring and report to the Board in accordance with this stipulation and order.

(ix) Respondent cannot engage in the independent practice of professional counseling or psychotherapy without a practice monitor in place.

d. Respondent cannot supervise or consult with other persons for the purpose of those other persons providing psychotherapy, as defined in C.R.S. §12-43-201(9), to clients unless respondent's supervision or consultation is supervised or monitored in accordance with 10b or 10c.

e. During the period of probation respondent must complete at least 20 contact hours of Board-approved graduate level professional education each year. This education shall cover the areas of boundary issues, dual relationships and legal/ethical issues related to the practice of professional counseling and psychotherapy.

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e. During the period of probation respondent must complete at least 20 contact hours of Board-approved graduate level professional education each year. This education shall cover the areas of boundary issues, dual relationships and legal/ethical issues related to the practice of professional counseling and psychotherapy.

f. Respondent will not treat any client that is diagnosed with or displays symptoms that lead the respondent or her supervisor or practice monitor to determine that the client's problems include issues that are beyond respondent's training, experience or competence. Should a new client seek professional counseling and psychotherapy services from respondent and she or her supervisor or practice monitor determines (when the client initially seeks treatment or at any time after treatment is commenced) that the client has problems that are beyond respondent's training, experience or competence, respondent will refer that client to another practitioner for treatment and terminate any therapeutic relationship.

g. Respondent must pay all costs or expenses incurred for the supervision, practice monitoring, education, and any other expenses incurred in fulfilling the terms of this stipulation and order.

i. Respondent is responsible for the reports due under this stipulation and order and must take reasonable steps to assure that her supervisor and/or practice monitor reports to the Board in accordance with this stipulation and order.

j. Respondent agrees that she will provide permission to and/or allow her supervisor and/or practice monitor to provide medical or psychological records or information to the Board in the event the supervisor and/or practice monitor determines that she is not practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice or has a physical or mental disability which renders her unable to treat clients with skill and safety or which may endanger the health or safety of persons under her care. As part of this stipulation and order respondent explicitly waives her right to maintain confidentiality of medical and psychological records and information provided to her supervisor and/or practice monitor if he/she determines that she is not practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice or has a physical or mental disability which renders her unable to treat with skill and safety to her clients or which may endanger the health or safety of persons under her care.

9. The Board will review the status of respondent prior to the expiration of the probationary period. Respondent's probationary period is subject to continuation, amendment, or revision if the Board, in the reasonable exercise of its discretion, determines that such action is necessary to protect the public health, safety, or welfare.

10. Any violation of this stipulation and order or any report from the supervisor and/or the practice monitor that the Board deems to be unfavorable to respondent shall, in the discretion of the Board, constitute grounds for disciplinary action or other

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10. Any violation of this stipulation and order or any report from the supervisor and/or the practice monitor that the Board deems to be unfavorable to respondent shall, in the discretion of the Board, constitute grounds for disciplinary action or other

legal action pursuant to C.R.S. §§12-43-701 to 12-43-711. This stipulation and order shall be admissible as evidence in any proceeding or hearing held to determine whether respondent complied with this stipulation and order and/or C.R.S. §§12-43-701 to 12-43-711, and at any subsequent inquiry related to licensure of respondent.

11. If a violation of this stipulation and order is proven after hearing, the Board may take into consideration all provisions, terms, and conditions of this stipulation and order prior to taking any action pursuant to and authorized by C.R.S. §§ 12-43-701 to 12-43-711. The requirements of this stipulation and order shall continue in effect throughout any disciplinary or judicial proceeding.

12. All time periods and obligations stated in this stipulation and order run only while respondent is engaged in the practice of professional counseling and psychotherapy in Colorado under supervision and/or monitoring of a Board-approved practice monitor, they are tolled and suspended at all other times.

13. If respondent is not providing professional counseling and psychotherapy services to clients as of the date of this Order, she must file with the Board a written statement verifying that she has no professional counseling and psychotherapy clients.

14. In the event respondent discontinues the practice of professional counseling and psychotherapy in Colorado, she shall notify the Board, in writing, within thirty (30) days of ceasing practice. The notification shall include the date on which she ceased practicing and her new address if she relocated.

15. In the event respondent resumes her practice of professional counseling and psychotherapy in Colorado, she shall notify the Board in writing within thirty (30) days of the resumption of the practice of professional counseling and psychotherapy in Colorado. Such notification shall include her address and the date on which she resumed practice.

16. As used in this stipulation and order, "engaged in the practice of professional counseling," "practice of professional counseling," "professional counseling services," and "professional counseling," have the same meaning as "professional counseling," as defined in C.R.S. §12-43-601(4). The terms "psychotherapy services", "practice of psychotherapy", and "engaged in the practice of psychotherapy" have the same meaning and scope as the term "psychotherapy" as defined in C.R.S. §12-43-201(9).

17. Respondent enters into this stipulation and order voluntarily, and after being fully advised both as to her right to a hearing and as to the consequences of this stipulation and order.

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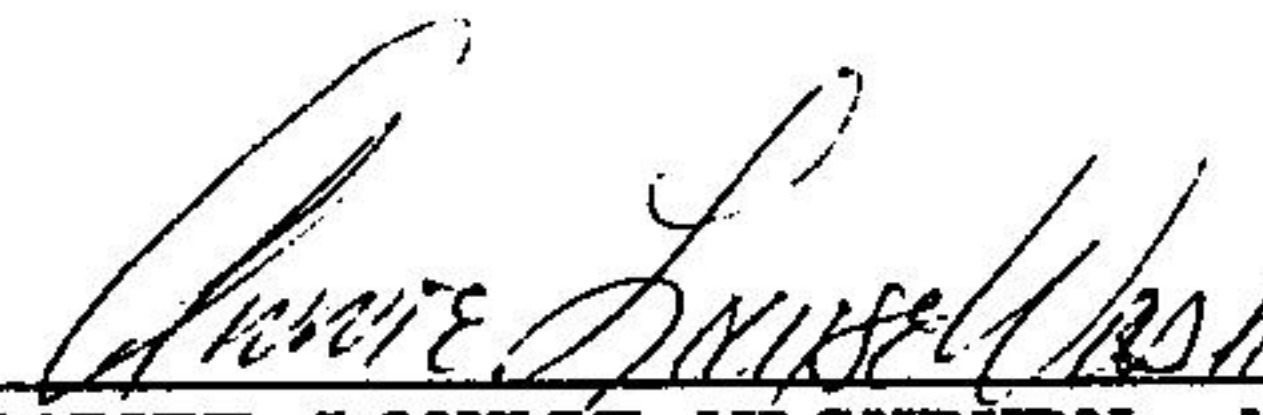
18. The Board order resulting from this stipulation and order possesses the same force and effect as an order entered as a result of a formal disciplinary proceeding held pursuant to C.R.S. §12-43-705; C.R.S. §24-4-105; and the Board's rules.

19. No agreement, understanding, representation, or interpretation not contained in this stipulation and order may be used to vary or to contradict its terms.

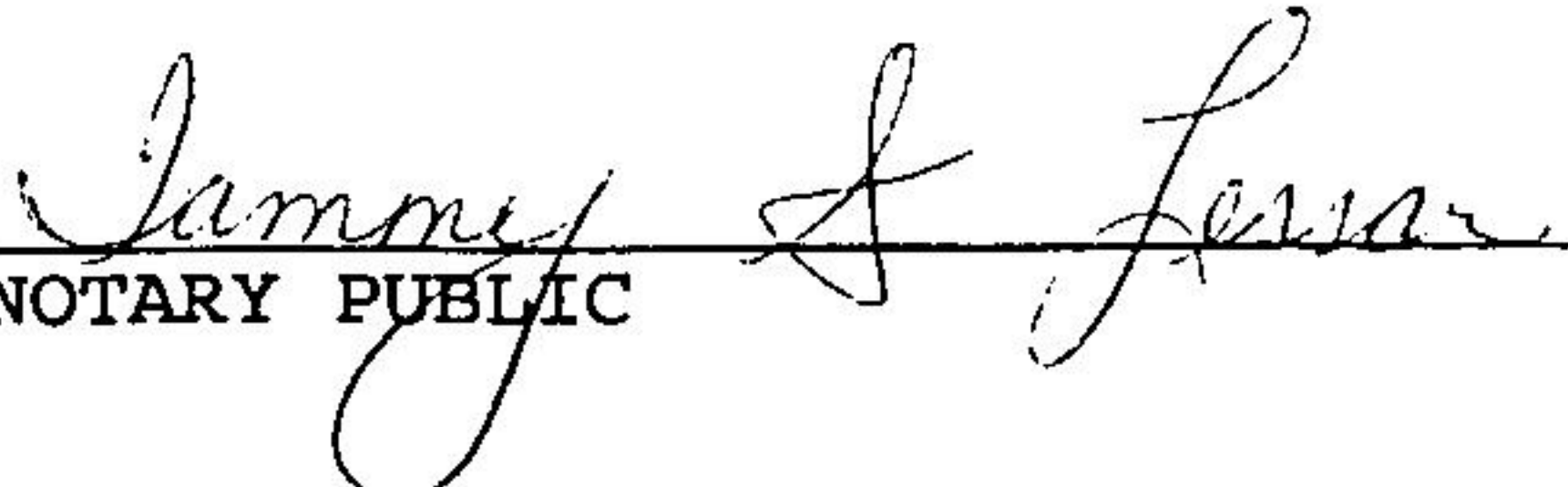
20. Each provision of this stipulation and order is separate. In the event of litigation involving compliance with the terms of this stipulation and order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the stipulation and order; and the parties will be obligated by the Board-construed or judicially-construed parts of the stipulation and order as if they were part of the original stipulation and order.

21. This stipulation and order is a public record.

22. This stipulation and order shall take effect on acceptance and signature by the Board ("effective date of the order").


ANNIE LOUISE WASHBURN, M.S., LPC
Respondent

Subscribed and sworn to before me in the County of Pueblo, State of Colorado, this 13th day of March 1996.


NOTARY PUBLIC

My Commission expires:

11/29/99

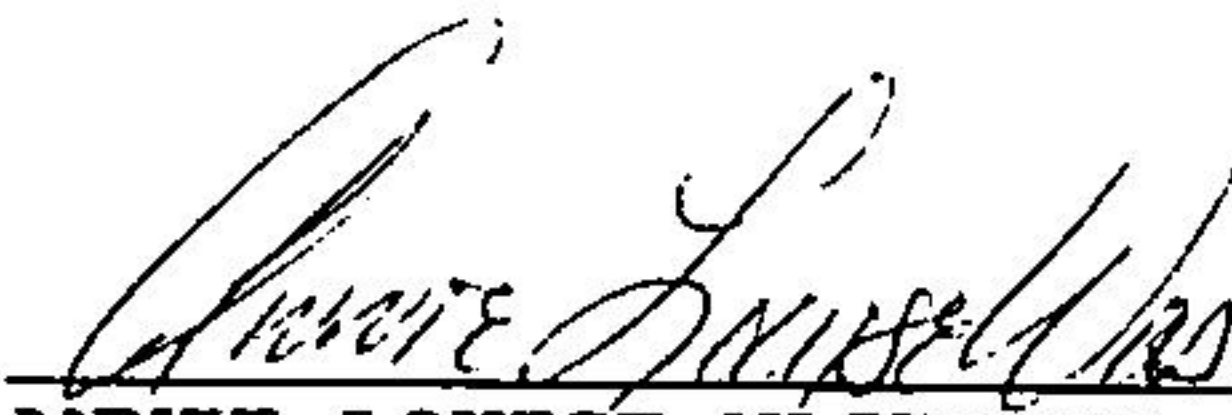
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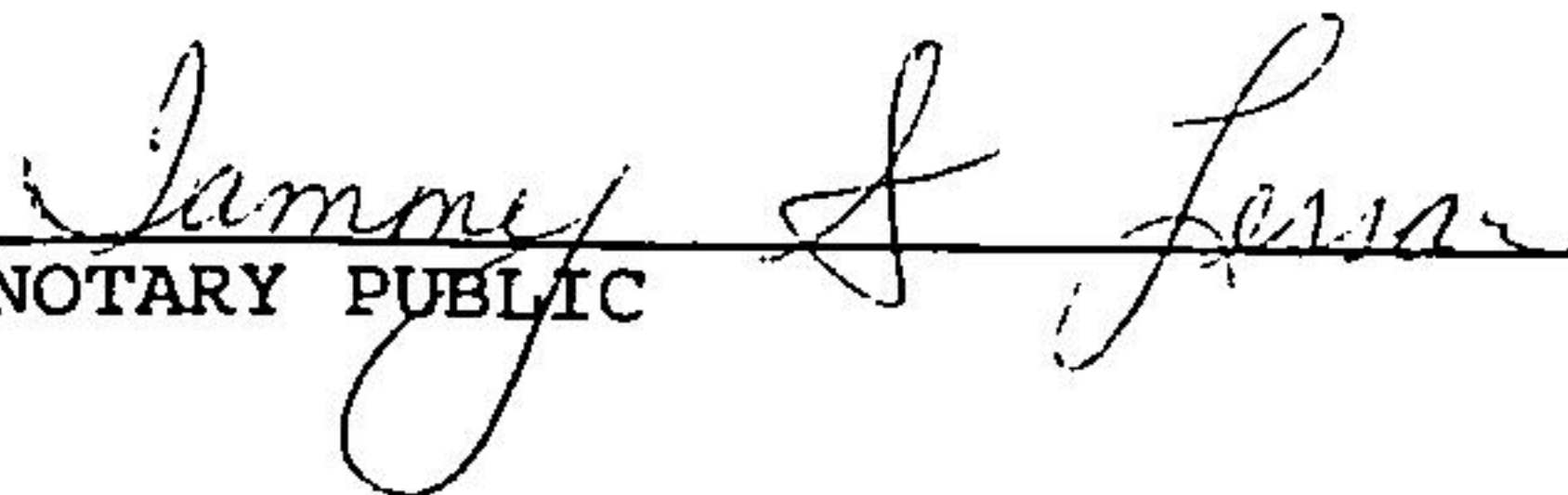
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ANNIE LOUISE WASHBURN, M.S., LPC
Respondent

Subscribed and sworn to before me in the County of
Pueblo, State of Colorado, this 13th day of
March 1996.


NOTARY PUBLIC

My Commission expires:

11/29/99

ACCEPTED, SIGNED, AND ORDERED this 18th day of March,
1996.

COLORADO STATE GRIEVANCE BOARD



By: DANIEL R. ROBINSON
Chairperson

APPROVED AS TO FORM

FOR THE ATTORNEY GENERAL:



JAMES F. CARR, 9343
Senior Assistant Attorney General
Regulatory Law Section

Attorneys for State Grievance
Board

1525 Sherman Street, 5th Floor
Denver, Colorado 80203
Telephone: 303/866-5307
AG Alpha No. RG GB DLINY
AG File No. RLJC6030

ACCEPTED, SIGNED, AND ORDERED this 18th day of March,
1996.

COLORADO STATE GRIEVANCE BOARD



By: DANIEL R. ROBINSON
Chairperson

APPROVED AS TO FORM

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